



District Director Agreement

Date: _____

Agreement: This Agreement (the "Agreement") is between Fathom Realty, LLC ("Fathom" or the "Company") and _____.

Position Title: District Director

Market Center(s): _____

Reporting: This position will report to Regional Director: _____

CC: Samantha Giuggio, Chief Operations Officer, Fathom Holdings
State Broker: _____

FATHOM MISSION STATEMENT

"Our mission is to transform the real estate industry by helping others come to understand that whoever aspires to be great must lead by serving others." - Josh Harley, Founder

POSITION OVERVIEW

As a Fathom Realty District Director, you will report directly to the Regional Director over your State/market center but will also work closely with the State Broker and supporting Home Office Staff. District Directors are responsible for meeting with Regional Director on a monthly basis for the purposes of updates, accountability, and instruction. The position's purpose emphasizes but is not limited to ensuring proper real estate practices, paperwork, documents, and processes are being used, executed properly, and reviewed/approved in accordance with the State's Real Estate Commission/Division/Department/governing body (REC), State and local Boards and/or Associations, State and/or local Multiple Listing Services (MLSs), as well as Fathom Realty Policy, Guidelines, and Best Practices. Further, the District Director ensures proper and adequate education and support for affiliated Agents providing training and oversight as it specifically relates to State and local market, broker-related REC, Association, Board, and MLS matters. District Directors also assist in supporting "all things Fathom" and any other brokerage, legal, regulatory, operational, and/or Errors & Omissions (E&O) and other risk mitigation related issues. District Directors' support extends beyond Fathom Realty to actively include but not limited to working to promote and support the Fathom's Ambassador Program and all Fathom companies and/or partners.

START DATE, TERM, AND TERMINATION

Your position under this Agreement of District Director will officially begin _____ and will continue until terminated by either party (you or Company) in accordance with this paragraph (the "Term").

If for any reason you decide to terminate this Agreement, or otherwise step down from your role as District Director, you agree to provide the Company with a minimum 90-day prior written notice to allow the Company adequate opportunity to find your replacement. You acknowledge and agree that failure to provide this minimum 90-day prior written notice may lead to forfeiting all unvested shares of Company stock received as a District Director.

Fathom may terminate this Agreement and/or change compensation components of this Agreement at any time and/or upon 30-day prior written notice. Fathom may also terminate this Agreement immediately for "Cause." For purposes of this Agreement, "Cause" means (i) your material breach of this Agreement or other agreed material terms; (ii) your commission of a felony or crime involving moral turpitude; (iii) any act by you involving dishonesty in the performance of the services including, without limitation, fraud, misappropriation or embezzlement; (iv) your repeated failure or refusal to perform the "Services" (as defined herein); (v) any willful or grossly negligent act or omission by you that is injurious to Fathom, including injury to its reputation; or (vi) the expiration, revocation, suspension or termination of your broker, real estate, or other related license for any reason.



THE MARKET CENTER

As a District Director, you are responsible for helping implement the strategy and goals for the Market Center. The Market Center name, territory, and Agent assignment are subject to change with 30 days' notice. The Market Center name is an internal organizational name only and does not affect the area in which you or your Agents conduct real estate licensee business.

THE SERVICES – KEY RESPONSIBILITIES

You will oversee the day-to-day operations of the Market Center. Specifically, your responsibilities include, but are not limited to, the following:

1. Development & Growth

- a. **(Grow) Support Recruiting Efforts:** Support the efforts of Fathom Recruiting Team and the Agents in your Market Center(s) as they grow their own Fathom Networks and contribute to monthly Market Center growth of 4% or more (includes but is not limited to Agents recruited by you, Fathom Recruiting Team, and/or Fathom Agents); best practice would be to grow your own Fathom Network by directly recruiting a minimum of two (2) Agents per month; confirm new recruit production in the MLS whenever possible; ensure that new Agents to Fathom do not have any pending or active real estate violations.
- b. **(Culture) Fathom Values:** Promote Fathom Values, Fathom Shares Program, Fathom culture, Agent growth, and goals at all times through engagement, discussions, training, and events with a positive attitude, excitement, and professionalism while actively contributing to the positive growth and reputation of Fathom Realty; each week call and speak individually with a minimum of five (5) Agents in your Market Center (or 10% of Agents in your Market Center - whichever number is greater); answer phone calls, email, and texts from Agents in a timely manner; monitor Fathom Facebook Mastermind Group(s) for your Market Center/State, build culture by stepping in to engage Agents, answer questions, and direct Agents to the appropriate resources and/or Fathom teams when necessary.
- c. **(Self) On-going District Director Learning:** Attend District Director Success Training (DDST) virtual sessions as scheduled over a period of 30 days (DDST attendance and participation is mandatory for new District Directors to ensure your understanding of and ability to utilize the technology provided prior to your engagement as a Fathom District Director; DDST is optional for existing District Directors); attend and participate in bi-weekly Fathom Leadership Calls & District Director Coffee Connections Calls, monthly one-on-ones with the Regional Director; work with the State Broker throughout the year to learn new processes, systems, and expectations of your role as District Director.
- d. **(Agents) Agent Training:** District Director is responsible for hosting a minimum of two (2) Agent Trainings monthly (allowing that one of those two can be conducted as a virtual meeting) for Fathom Agents within your Market Center which may include meet & greets, forms training, lunch & learns, New Agent Orientation, productivity training, and/or trainings for real estate growth & professionalism to ensure Agents understand the available resources and expectations to stay in compliance with Fathom, State, and local market requirements. All training sessions can be recorded and made available on Fathom Academy along with training materials and other collateral from the actual training session.
- e. **(F.A.S.T. Mentor Program) Mentor Experience:** Work with the Home Office Staff (and respond to them in a timely manner) to support the Mentor experience in the F.A.S.T. Mentor Program; goal is to grow F.A.S.T. Mentor count/participation in your Market Center so there are no more than five (5) Mentees assigned to a Mentor; conduct quarterly Mentor meetings throughout the year; identify and encourage Agent participation in becoming a F.A.S.T. Mentor; certify as a F.A.S.T. Mentor yourself and renew certification annually whether or not you plan to participate as a F.A.S.T. Mentor.

2. Support

- a. **State Leadership:** Support the State Broker including but not limited to working with and supporting their efforts to oversee Agents and their transactions in your Market Center; ensure excellence by fostering a high-performance and Agent-centric culture.
- b. **Agent Support:** Answer Agents' real estate questions in accordance with the Real Estate Commission rules, regulation, laws, and guidelines, including the State Broker in the issue when needed; District Director is responsible for working cohesively with Agent Support Teams at the Fathom Home Office (Agent Services, Compliance Brokerage Review, Onboarding, etc.) or with Fathom Accounting to resolve Agent and/or transaction issues in a timely manner; District Directors are also responsible for educating and/or coaching Agents when requested or needed on behalf of aforementioned Teams.
- c. **(F.A.S.T. Mentor Program) Mentee Experience:** Work with the Home Office Staff to support the Agent/Mentee experience in the F.A.S.T. Mentor Program by supporting the Mentees, the Program, and Staff; conduct quarterly Mentee check-ins throughout their time in the Program.



- d. **Fathom Companies & Partners:** Promote, support, and advocate for all Fathom Companies & Partners (including but not limited to Encompass Lending Group, Verus Title, GoSocial Agent, etc.) to reach and maintain goal of 10% or more of all transactions including one or more Fathom Companies (other than Fathom Realty) and/or Partners; maintain a supportive and professional relationship with the Fathom Ambassador Program by making introductions and inviting them to participate in your Market Center training sessions and Agent events.

3. Compliance

- a. **Litigation, mediation, arbitration:** Immediately inform Fathom Realty (via FathomWiki: *Notification of Complaint Form*) of any existing or potential litigation issues, Real Estate Commission mediation or arbitration hearings, Association(s)/Board(s), and/or MLS(s) issues, Code of Ethics issues, etc. that arise in your Market Center.
- b. **State/Local Licensing & Membership(s):** District Director is responsible for maintaining active licensing and 'in good standing' status with the appropriate Associations, Boards, MLSs, National Association of Realtors, and any other necessary trade organizations in your Market Center; ensure that Fathom Realty and your Market Center remain active at all times with and within the Real Estate Commission, Association, Board, and/or MLSs in the market; District Director is responsible for working with and/or otherwise notifying Fathom Home Office if issues arise with their licensing, membership, and/or status especially if it will impact the licensing, membership, and/or status of Agents in their Market Center, State, and/or MLS or other associations/groups; work with Fathom Onboarding Team throughout the Onboarding process and complete local market License and/or Membership activations, transfers, inactivations, etc as appropriate for Agent and situation coordinating with State Broker when needed; periodically review reports, rosters, and/or other documentation to ensure all Fathom Agents in your Market Center are current with Real Estate Commission, NAR, Association(s), Board(s), and/or MLS(s) status, dues, and other fees when applicable.
- c. **Agent Transactions:** District Director is responsible for working cohesively with Agent Support Teams at the Fathom Home Office (Agent Services, Compliance Brokerage Review, Onboarding, etc.) or with Fathom Accounting to resolve Agent transaction issues in a timely manner; review MLS regularly to identify new listings and/or other transactions expected to be in IntelliAgent within 48hrs of establishing Agency or execution of document(s).
- d. **Transaction Document Review:** District Directors are also responsible for ensuring all transaction documents are reviewed at least once a day, five days a week, as the documents are submitted irrespective of when the transaction closing date may or may not be scheduled. It is against Fathom Policy for District Directors to wait on reviewing/approving transaction documents until close(r) to the scheduled closing date as it holds up Compliance Brokerage Review, Accounting, distribution of CDA's, and ultimately payment to Agents.
- e. **Deboard Requests:** District Director is responsible for submitting Deboard Requests (via FathomWiki: *Agent Termination Form*) within 48 hours of learning an Agent intends to/has already left Fathom Realty or otherwise moved/inactivated their license with Fathom Realty; District Directors may also be asked to assist in pulling MLS roster data for audit or clean-up purposes.

COMPENSATION

New District Directors are able to select between two District Director/Leadership plan types, both of which include Capped status and no Annual Fee. Existing District Directors may remain on their current plan or select one of the new District Director Plans. However, if you step down as District Director you will be eligible to remain on your Leadership Plan if you have been a District Director for a minimum of 24 consecutive months. If you have not met the minimum 24 consecutive months requirement then you will be required to enroll in a new Plan which may not include Capped status and/or no Annual Fee. All plan changes MUST be processed by Fathom Onboarding.

As a District Director with Fathom Realty, your compensation will be based on the following categories:

1. Monthly Base:

Calculation is based on the number of active Agents in your Market Center(s) – subject to re-calculation every quarter. The compensation levels are defined as below (individual levels are NOT cumulative):

- 01-49 agent - \$500 per month
- 50-99 agents - \$1,000 per month
- 100-149 agents - \$1,500 per month
- 150-199 agents - \$2,000 per month
- 200-249 agents - \$3,000 per month
- 250-299 agents - \$4,000 per month
- 300-349 agents - \$4,250 per month
- 350-399 agents - \$4,500 per month
- 400+ agents - \$4,750 per month



2. Transaction Commissions:

You will receive commissions on transactions under Fathom Realty that are generated within your Market Center while you are an active District Director (excluding your own property and/or personal real estate transactions) as follows:

- a. \$50 for each Sales transaction (Buyer or Seller transactions only) in which Fathom collects a transaction fee
- b. Company earns 10% on F.A.S.T. Mentee transactions. District Director will earn 20% of the Company-earned portion (10%) collected/received for all closed and funded F.A.S.T. Mentee Buyer/Seller closings in the Market Center.
- c. Company earns 10% or 12% (per Agent Plan) on Commercial transactions. District Director will earn 20% of the Company-earned portion (10% or 12%) collected/received for all closed and funded Commercial transactions in the Market Center.
- d. Commissions are paid after Fathom has received the applicable transaction fee(s) and/or other funds.
- e. All override commissions will be paid by the last day of the following month.

3. Stock Grants:

You will receive stock grants from Fathom Holdings, Inc. based on the following stock grant program:

- a. \$10 in stock for every Sales transaction (Buyer or Seller transactions only) closed in your Market Center.
- b. \$50 in stock for every new Agent that is added to your Market Center
 - Excluded are Additional Market Affiliations, Agents that are currently with another Fathom Owned Real Estate Company, and/or any Agents that are part of a walk-over and/or acquisition (M&A) arrangement where Fathom has paid to purchase that company.
- c. The number of shares will be calculated every quarter based on the price of the stock. Stock grants vest in two (2) years with a 2-year cliff.

4. Revenue Share:

You will be eligible to earn Revenue Share for new Agents to Fathom for which you are solely and directly responsible for recruiting to your Fathom Network. All Revenue Share eligibility and payment rules shall apply.

E&O COVERAGE

Fees for E&O (Errors & Omissions) insurance coverage are \$35 per transaction or as outlined in your Fathom Schedule A. These fees are paid by the Primary Agent closing the transaction with/under Fathom Realty.

TRANSACTION FEES FOR PERSONAL BUSINESS

All costs, fees, and compensation structure will be applied in accordance with your applicable Schedule A. As a District Director, your monthly dues will be \$0. You will not have an annual Cap as long as you remain a District Director with Fathom Realty. If applicable, Agents added to your Team as Team Members will be required to follow all Team Member Plan rules as directed by Fathom's Independent Contractor Agreement and corresponding Schedule A.

DISTRICT DIRECTOR TRAINING

You agree to attend District Director Success Training (DDST). This training will be attended by other District Directors joining Fathom at the same time and will be offered virtually, over a period of 30 days. Training attendance is mandatory for new District Directors to ensure your understanding of and ability to utilize the technology provided prior to your engagement as a District Director.

F.A.S.T. MENTOR PROGRAM (FATHOM'S AGENT SUCCESS TRAINING)

District Director may act as a certified F.A.S.T. Mentor whereby Mentor will earn 20% of the Mentee side gross commission earned and collected on the first three (3) Buyer or Seller closings of any Agent the District Director actively mentors through and following the F.A.S.T. Mentor Program.

All District Directors should obtain and maintain their F.A.S.T. Mentor certification to ensure a working knowledge of the Program even if they do not act as Mentor for Agents/F.A.S.T. Mentees.

District Director agrees NOT to create their own mentoring program or to conduct their own mentoring outside of the F.A.S.T. Mentor Program.

District Director agrees to support, in the capacity of District Director, Mentees & Mentors in your Market Center as they work through the Program and fulfill their financial obligation to Fathom Realty.



INDEPENDENT CONTRACTOR STATUS

During the Term of this Agreement, you will be an Independent Contractor and not Fathom's employee for any purpose, including, but not limited to, the application of the Fair Labor Standards Act's minimum wage and overtime provisions, the Federal Insurance Contribution Act, the Social Security Act, the Federal Unemployment Tax Act, the provisions of the Internal Revenue Code, and all federal, state, and local laws and regulations. You understand that Fathom will not be responsible for withholding or paying any federal or state income, social security, or other taxes in connection with any compensation paid to you under this Agreement, and you agree to pay all such taxes when due.

You further understand and agree that you will not be entitled to any medical, disability, pension, or other employment benefits made available by Fathom to its employees.

Except as expressly outlined in this Agreement or as limited or regulated by applicable state and/or federal law, you will retain sole and absolute discretion and judgment in the manner and means of carrying out agreed terms and conditions of engagement as an Independent Contractor of Fathom Realty.

Your role requires you to maintain your work operations remotely and schedule independently. You will be responsible for providing the equipment, tools, and resources necessary to perform your duties. Any expenses incurred in connection with your work will not be reimbursed by the Company.

You acknowledge your ongoing responsibility to maintain reasonable and adequate levels of technological security to protect confidential and private information as required by applicable laws and Fathom Policy. This includes implementing safeguards to prevent unauthorized access, data breaches, or any other form of compromise to sensitive data. You agree to stay informed and comply with all legal and regulatory requirements concerning data privacy and security, ensuring that all technological practices align with industry standards for confidentiality protection.

INDEMNIFICATION

You hereby agree to indemnify and hold Fathom harmless from any and all claims, causes of action, or other proceedings related to or resulting from your failure to pay taxes in compliance with applicable law.

You acknowledge and agree that you do not have agency or authority to enter into any contract on behalf of or to otherwise bind the Company to any agreement unless expressly authorized in writing to do so by a Company representative or employee who is vested with such authority and Company will not be liable for any obligation(s) incurred by you or otherwise arising from unauthorized promise(s).

NON-SOLICITATION

District Director agrees that during the term of this Agreement and for a period of twelve (12) months after termination of this Agreement for any reason, District Director shall not, directly or indirectly, on their own behalf or on behalf of any other person(s), firm, partnership, company, corporation, broker, or other, solicit, induce, or encourage any of the Agents, District Directors, State Brokers, employees, contractors, or consultants of Company or any of its subsidiaries to work for any business, individual, partnership, firm, company, corporation, or other entity that engages in business practices that compete directly with Company and/or its subsidiaries. This provision shall not apply in cases where the District Director is recruiting individuals who were Team Members working under District Director as their Team Leader when District Director was with Company.

Additional Non-Solicitation information is available in Fathom's Independent Contractor Agreement (ICA) under "Non-Solicitation."

NO DISPARAGEMENT

You acknowledge and agree that upon termination of your engagement with the Company, you will not denigrate, defame, disparage, or cast aspersions upon the Company, the Company Parties, their products, services, business, and manner of doing business and you will use your reasonable best efforts to prevent any member of your family from engaging in any such activity; provided, however, nothing in this Agreement prohibits you from providing truthful information and/or testimony in connection with any investigation or proceeding conducted by, the U.S. Equal Employment Opportunity Commission or a comparable state or federal fair employment practices agency.

Unless you provide written authorization for Fathom to release certain additional information, the Company will release only the dates defining the term(s) of your engagement and positions or roles held with the Company in response to any inquiry from any third party regarding your engagement history.

NOTICE REQUIREMENTS

All notices by either party relating to this Agreement must be in writing and emailed to your Regional Director and/or DDSupport@FathomRealty.com. All notices will be deemed effectively given as follows:

1. Upon personal delivery to the party to be notified;
2. Five (5) days after having been sent by registered mail, postage prepaid, return receipt requested, to the address identified in the signature block at the end of this Agreement or to the address provided in the space below (in this section) (i.e., if mail delivery or postal address is different than home address);
3. One (1) day after deposit with a nationally recognized overnight courier, specifying next-day delivery, with written verification of receipt to the address identified in the signature block at the end of this Agreement; or
4. sent by email (with receipt confirmed) on a business day during regular business hours of the recipient (or if not, on the next succeeding business day).

Parties may change addresses at which they receive Notice by providing written Notice to the other party in the manner described in this section.

Notice to Company: Fathom Realty, LLC, 2000 Regency Pkwy, Suite 300, Cary, NC 27518
(email your Regional Director and/or DDSupport@FathomRealty.com)

Notice to District Director: Your Name: _____
Postal Address: _____
Street _____
City _____ State _____ Zip _____
Email: _____

AGREEMENT TERMS, BACKGROUND CHECK, AND CHOICE OF LAW

You acknowledge that this Agreement represents the entire Agreement between you and Fathom Realty, LLC regarding the subject matter hereof and that there are no verbal or written agreements, promises, or representations that are not specifically stated in this Agreement, or that are or will be binding upon Fathom Realty, LLC.

Acceptance of this Agreement is contingent upon receiving an executed Release for Background Check, as well as completing and passing a satisfactory background check.

This Agreement supersedes any previously signed Offer Letters, documents, or other statements concerning your engagement as a District Director with Fathom Realty.

This Agreement is to be governed by the laws of the State of _____ without regard to its choice of law provisions -- noting especially that the laws governing Independent Contractor relationships vary from state to state. To the extent that any provision of this Agreement conflicts with applicable state law, this Agreement will be deemed amended to the extent necessary to comply with that law.